

25STCV32392 25STCV32392

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-07-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C516%2C07%2F21%2F2026

Source SHA-256: 72fc145aef31119f0dd6ec9ac42e9c5897e3f0669d7c98101c17538382170e35

Case Number: 25STCV32392 Hearing Date: July 21, 2026 Dept: 516

Hearing Date: July 21,
2026

Case Name: Wright

v. Volkswagen Group of America, Inc.

Case No.: 25STCV32392

Motion: Motion

to be Relieved as Counsel

Moving Party: Counsel for Plaintiff

Opposing Party: None

Tentative Ruling: The

Motion to be Relieved as Counsel is denied.

Plaintiff's

firm –Prestige

Legal Solutions, P.C.– seeks to be relieved as counsel of record for Plaintiff Candace Michele Wright. No opposition was filed.

Discussion

An attorney is entitled to withdraw upon the consent of the client, or without that consent if approved by the court. (Code Civ. Proc., § 284; Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904,

915.) In the latter case, counsel must make a motion to be relieved as attorney of record. The motion must be made using mandatory forms: Notice of Motion and Motion to be Relieved as Counsel – Civil (MC-051), Declaration (MC-052), and Proposed Order (MC-053). (Cal. Rules of Court, rule 3.1362, subd. (a), (b), (e).)

The declaration accompanying the motion to be relieved as counsel must state “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362, subd. (b).)

The notice to the client must be delivered by personal service, electronic means, or mail. If it is done via mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration confirming the service address to be the most current residence or that it is the client’s last known address, and the attorney has been unable to locate a more current address. (Cal. Rules of Court, rule 3.1362, subd. (d)(1)(A)-(B).) If the notice is served on the client by electronic service under Code of Civil Procedure section 1010.6 and rule 2.251, it must be accompanied by a declaration stating that the electronic service address is the client’s current electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).)

Here, the firm Prestige Legal Solutions, P.C. has complied with the Rules of Court by filing forms MC-051, MC-052, and MC-053.

Michelle

Yang (“Yang”), on behalf of Prestige Legal Solutions, P.C. states that there has been a breakdown of the attorney-client relationship.

The Court finds that this alone is not sufficient information to determine whether the motion should be granted.

There is also ambiguity in relation to whether Yang has confirmed Plaintiff’s address to be served. Yang declares that the breakdown between the Plaintiff and representation is due to “numerous attempts to communicate reasonably with Plaintiff through written correspondence.” (Yang Decl., ¶ 3.) But Plaintiff’s firm contends that it confirmed Plaintiff’s address over telephone. (MC-052)

Thus, the Court

denies Prestige

Legal Solutions, P.C.'s motion to be relieved as counsel.